

#	Case Name	Tentative Ruling
101	Angola v. Children's Hospital of Orange County, 2025-01524204	Motion to Strike Portions of Complaint - GRANTED Plaintiff does not assert any causes of action for which punitive damages could be awarded. Demurrer to Complaint – SUSTAINED WITH LEAVE TO AMEND The court requires that parties e-file documents through an electronic filing service provider (ESFP). If Plaintiff submitted his complaint through the ESFP before the statute expired, then it would not be time-barred. Plaintiff's evidence does not establish conclusively that the complaint was timely filed, but Plaintiff may be able to allege facts to do so. The court finds that the decedent became a trespasser when he entered the employee only elevator, and therefore Plaintiff cannot state a claim for breach of any duty owed by Defendant to Decedent and/or Plaintiff. Additionally, Plaintiff has failed to set forth facts sufficient to state a cause of action for negligent hiring. Case Management Conference
102	Barrera v. Hail Mary, Inc 2024-01421079	Motion for Leave to File Amended Complaint - GRANTED Plaintiff Maria Munoz Barrera's unopposed motion for leave to file a First Amended Complaint is GRANTED. Pursuant to Code of Civil Procedure section 473, subdivision (a), the court may, "in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars...." (Code Civ. Proc., § 473, subd. (a).) "[T]he trial court has wide discretion in allowing the amendment of any pleading [citations], [and] as a matter of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse of discretion is shown." (Melican v. Regents of University of

		California (2007) 151 Cal.App.4th 168, 175.) “[T]he court’s discretion will usually be exercised liberally to permit amendment of the pleadings.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Ibid.) Here, the proposed amendment involves additional allegations and legal theories concerning the same incident that is already alleged in the Complaint. This case is in its early stages, and no party has opposed the motion. The Court therefore exercises its discretion in allowing the amendment. Plaintiff shall file the proposed first amended complaint within five (5) days of this order. Plaintiff to give notice.
104	Castillo vs. Yu 2024-01419781	Motion to Set Aside/Vacate Dismissal – DISMISSED WITHOUT PREJUDICE The court must vacate dismissals “resulting” from the attorney's “mistake, inadvertence, surprise, or neglect.” (CCP § 473(b).) Mandatory relief is available only where the attorney failed adequately to oppose a motion to dismiss, not where the dismissal results from the attorney's conduct preceding the motion to dismiss. Section 473(b) is not “the perfect escape hatch from the dismissal statutes.” (Graham v. Beers (1994) 30 Cal.App.4th 1656, 1661.) Here, Plaintiff seeks relief from the 06/05/2025 dismissal order. (ROA 40) Attorney Joseph Trenk, who was Plaintiff’s attorney in June 2025, declares, “In November 2024 I became seriously ill and developed circulatory complications in my lower extremities. I was hospitalized and, in December 2024, underwent surgery that resulted in the removal of two toes. I was out of my office for approximately two months recovering from this unexpected condition and was unable to attend to my pending cases.” (Dec. of Trenk ¶3.)